

22STCV19102 22STCV19102

County: los-angeles

Division: Civil Law and Motion

Department: 517

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Following

a bench trial in this case, the Court ruled in favor of LA Taxi Cooperative, Inc. ("LATC") on the claims of Plaintiff Israel Tadesse ("Tadesse"). On February 6, 2026, LATC filed and served a proposed judgment memorializing the Court's ruling. The Court entered the judgment that same day. On February 26, 2026, LATC filed a memorandum of costs that it seeks to recover from Tadesse as the prevailing party in the action. The amount of the costs is \$6,893.54. Pending before the Court is Tadesse's motion to strike or tax the costs in LATC's memorandum of costs. The Court is denying Tadesse's motion.

Tadesse argues that LATC's filing of the memorandum of costs was untimely under rule 3.1700 (a) of the California Rules of Court. The Court disagrees.

Rule 3.1700(a) requires a prevailing party in a civil action to serve and file a memorandum of costs setting forth the costs that the party claims that it is entitled to recover from the other party/parties over which it prevailed. It specifies the following deadlines to do that: "[W]ithin 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a)(1).) Rule 3.1700(a) thus has a 15-day deadline to file and serve the memorandum of costs based on either the clerk's service of notice of entry of judgment or dismissal under Code of Civil Procedure section 664.5 ("section 664.5") or a party's service of written notice of entry of judgment or dismissal; if there is no notice that triggers the 15-day deadline, then the

deadline falls back to 180 days after the entry of judgment.

Tadesse argues that the clerk of the Court gave notice of entry of the judgment on February 6, 2026 and thus LATC's filing of the memorandum of costs on February 26, 2026 was past the 15-day deadline, even factoring into two additional days for the electronic service of the notice of entry of judgment. Tadesse is mistaken. The clerk did not give notice of entry of judgment. The clerk gave LATC notice of the judgment and the minute order stating that the judgment was entered. But the Court directed LATC's counsel, not the clerk, to give notice of entry of the judgment. LATC's counsel did that on February 13, 2026. LATC's filing of the memorandum of costs on February 26, 2026 fell within the 15-day deadline that started to run when the notice of entry of judgment was filed and served by LATC's counsel.

Tadesse fares no better with his argument for the striking or taxing of the items of costs set forth in the memorandum on the ground that the costs were not reasonably necessary for the conduct of the litigation and were not supported. The memorandum of costs sets forth three categories of costs that LATC seeks to recover (1) filing and motion fees; (2) deposition costs; and (3) court reporter fees. Each category reflects costs that a prevailing party is entitled to recover. Further, the amount of the costs, which LATC documented, was reasonably necessary for the conduct of LATC's litigation.